

PETITION FOR EXPUNGEMENT OF MISDEMEANOR CONVICTIONS (MISS. CODE ANN. SEC. 9-11-15(3) OR SEC. 21-23-7(6))

IN THE COURT OF, MISSISSIPPI
(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the convictions were had)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

PETITION FOR EXPUNGEMENT OF MISDEMEANOR CONVICTIONS

STATE THE SECTION THIS PETITION IS BROUGHT UNDER. Both sections say the same thing; which one applies depends on which court convicted you.

Justice court conviction Miss. Code Ann. Sec. 9-11-15(3)

Municipal court conviction .. Miss. Code Ann. Sec. 21-23-7(6)

This petition is brought under Miss. Code Ann. Sec.

COMES NOW the Petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, and petitions this Court, in its discretion, to expunge the record of conviction of the misdemeanors identified below, all of which were had IN THIS COURT, and would show:

1. IDENTIFYING INFORMATION.

Petitioner's name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi
39520-2214

Telephone: (228) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

2. THE CONVICTIONS IN THIS COURT. This route reaches ANY OR ALL misdemeanors in this one court, and only in this one court. List each conviction you ask this Court to expunge - the charge, the cause number and the conviction date - copied from the certified judgments:

.....
.....
.....
.....

(If you have convictions in another justice or municipal court, they are NOT reached by this petition. Each

court expunges only its own misdemeanors, and a separate petition goes to that other court.)

3. THE THREE-ELEMENT SHOWING. Both sections permit the Court, in its discretion, to expunge on a showing made IN OPEN COURT of the following three things. Petitioner will make that showing in open court; it is not made on this page:

- (i) that Petitioner has been rehabilitated;
- (ii) that Petitioner has been of good behaviour and has not been convicted of any offence in ANY COURT for two (2) years since the last conviction; and
- (iii) that the best interest of society would be served by the expungement.

4. THE TWO-YEAR CLOCK RUNS FROM THE LAST CONVICTION IN ANY COURT - not merely in this court. Petitioner has obtained a Mississippi criminal history record to confirm it rather than relying on memory.

Date of the last conviction in ANY court, per the Mississippi criminal history record:

.....

5. NOTICE TO THE PROSECUTING AUTHORITY. The prosecuting authority for this court receives prior notice of this petition, and the certificate of service evidences it.

WHEREFORE, Petitioner asks the Court, in its discretion, to expunge the record of conviction of the misdemeanors identified above.

DATE SIGNATURE OF PETITIONER

(Petitioner signs and dates this petition. Nothing on this page is signed or dated for Petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi 39520-2214

TELEPHONE: (228) 555-0199 ext. 4417 EMAIL:

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DECLARATION. Petitioner states that the matters set out above are true and correct to the best of Petitioner's knowledge, information and belief.

PROPOSED ORDER OF EXPUNGEMENT

IN THE COURT OF, MISSISSIPPI
(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the
convictions were had)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

ORDER OF EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has
made and nothing in it asserts that the Court has acted.

THIS CAUSE came before the Court on the Petition of Maria-Alejandra O'Shaughnessy-Whitfield for
expungement of misdemeanor convictions had in this Court, under Miss. Code Ann. Sec. ,
and upon the showing made in open court.

The Court FINDS (findings to be made by the Court, on the showing made in open court):

.....
.....

IT IS THEREFORE ORDERED AND ADJUDGED that the record of conviction of the misdemeanors
identified in the Petition, all of which were had in this Court, be and the same is hereby EXPUNGED.

IT IS FURTHER ORDERED that this Order does NOT apply to the confidential records of
law-enforcement agencies, and has NO EFFECT on the driving record maintained under Title 63 of the
Mississippi Code.

SO ORDERED AND ADJUDGED this day of, 20....

.....
JUDGE

APPROVED AS TO FORM:

.....
Prosecuting authority

(The findings, the date of entry, the judge's signature and the prosecuting authority's approval as to form
are all left blank.)

CERTIFICATE OF SERVICE

IN THE COURT OF, MISSISSIPPI
(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the
convictions were had)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

CERTIFICATE OF SERVICE

This certificate is captioned for THIS petition. The prosecuting authority receives PRIOR notice of the
petition, and this certificate is the evidence of it.

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that I have this day served a true and correct copy of
the Petition for Expungement of Misdemeanor Convictions on the prosecuting authority for this Court, by
United States mail, postage prepaid, or by hand delivery, addressed as follows:

Prosecuting authority - the MUNICIPAL PROSECUTING ATTORNEY on the Sec. 21-23-7(6) branch, or
the equivalent prosecutor for the justice court on the Sec. 9-11-15(3) branch. Name and office:

.....

Address served:

.....

Manner of service (United States mail or hand delivery):

Date served:

.....

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner

Date:

(Service dates are written when service is actually made. No prosecutor's name or address is printed here:
the platform holds none for any Mississippi justice or municipal court and does not guess one.)

DOCUMENTS TO OBTAIN BEFORE FILING

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Get these before you write anything on the petition.

1. YOUR MISSISSIPPI CRIMINAL HISTORY RECORD - from the Mississippi Criminal Information Center. THIS ONE IS NOT OPTIONAL ON THIS ROUTE. The two-year good-conduct clock runs from your last conviction in ANY COURT, not just this one, so the only reliable way to know whether two years have actually passed is to look at your whole record. Do not rely on memory.
2. CERTIFIED COPIES OF EACH JUDGMENT OF CONVICTION IN THAT COURT - from the clerk of the justice court or municipal court. Ask for a certified copy of each conviction you want expunged. You list them all on the petition.
3. DOCKET SHEET FOR THE CASE - from the clerk of the court where the case was heard. It shows every court-imposed term and whether each was satisfied.

ONE COURT AT A TIME. Each court expunges only its own misdemeanors. If your convictions are spread across two justice or municipal courts, you need a separate petition in each, with its own certified judgments and its own prosecuting authority served.

FILING INSTRUCTIONS, THE OPEN-COURT SHOWING, AND WHAT THIS ORDER DOES NOT REACH

This packet is prepared for asking the Mississippi justice court or municipal court that convicted you to expunge any or all of its own misdemeanor convictions.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

GET AN ADVOCATE OR A LAWYER FOR THE HEARING. The committed legal record puts this route in the stop-and-get-help class whenever it is in play, and the reason is specific: the three-element showing is DISCRETIONARY ADVOCACY made in open court, not a form to fill. You will stand up and persuade a judge.

WHICH SECTION, AND WHERE THIS IS FILED. Both sections say the same thing and which applies depends only on which court convicted you.

Convicted in JUSTICE COURT Miss. Code Ann. Sec. 9-11-15(3), filed with the clerk of that justice court.

Convicted in MUNICIPAL COURT .. Miss. Code Ann. Sec. 21-23-7(6), filed with the clerk of that municipal court.

File with the CLERK OF THE COURT IN WHICH THE CONVICTIONS WERE HAD. Justice and municipal courts are the least standardized courts in Mississippi, so CALL THAT CLERK BEFORE FILING and ask how that court wants this done.

ONE PETITION PER COURT. Each court expunges only its own misdemeanors. Convictions in two courts need two petitions.

WHAT IT COSTS, AND WHAT IS ACTUALLY KNOWN.

The \$150 filing fee you may have read about is levied by Miss. Code Ann. Sec. 99-19-72 on petitions to expunge an offense under Sec. 99-19-71. THIS PETITION IS NOT BROUGHT UNDER SEC. 99-19-71. It is brought under Sec. 9-11-15(3) or Sec. 21-23-7(6), and the Sec. 99-19-72 fee does not reach those sections by its terms. Neither Sec. 9-11-15(3) nor Sec. 21-23-7(6) specifies a fee of its own.

So the honest answer is: no fee amount is established for this route in the records this packet is built from, and the \$150 figure is not yours to pay unless that court itself charges it for some other reason. ASK THE CLERK OF THE JUSTICE COURT OR MUNICIPAL COURT WHERE YOU ARE FILING what that court charges, before you file.

ABOUT A FEE WAIVER. No waiver procedure is established for these sections either. Ask THE SAME CLERK.

WHO YOU SERVE. The PROSECUTING AUTHORITY for that court receives PRIOR NOTICE - the municipal prosecuting attorney on the Sec. 21-23-7(6) branch, and the equivalent prosecutor for the justice court on the Sec. 9-11-15(3) branch. Serve by United States mail or hand delivery and file the

certificate of service as your evidence.

THERE WILL BE A HEARING. This is not a contingency. Both sections require the showing to be made IN OPEN COURT, so a hearing always occurs on this route. Be ready to show three things:

- (i) that you have been rehabilitated;
- (ii) that you have been of good behaviour and have not been convicted of any offence IN ANY COURT for two years since your last conviction; and
- (iii) that the best interest of society would be served by the expungement.

THE TWO-YEAR CLOCK COUNTS EVERY COURT. It runs from your last conviction in ANY court, not merely in the court you are petitioning. That is why the Mississippi criminal history record is not optional here: a conviction you forgot, in another court, restarts it.

RELIEF IS DISCRETIONARY. Both sections say the court MAY expunge. Meeting all three elements does not entitle you to the order.

WHAT THIS ORDER DOES NOT REACH.

It does not apply to the confidential records of law-enforcement agencies.

IT HAS NO EFFECT ON YOUR DRIVING RECORD. The driving record maintained under Title 63 of the Mississippi Code is untouched by this order. If clearing your driving record is what you are after, this route will not do it, and you should say so to whoever is helping you before you spend the effort.

WHEN TO STOP AND GET HELP INSTEAD.

- Whenever this track is in play. The open-court showing is discretionary advocacy and is an attorney or advocate handoff.
- You have convictions in more than one justice or municipal court.
- You have any conviction in any court within the last two years - the clock has not run.
- You expect the driving record to be cleared. It will not be.
- You are not a United States citizen.

Where self-help stops, the clerk of the justice or municipal court answers filing mechanics, and the Mississippi Criminal Information Center issues the criminal history record the two-year element depends on.